tne termination of 520 poles on the river, and thence to run off at right angles from that point.

"Having decided the manner in which the entries of Massie, Powell and O'Neal ought to have been surveyed, it remains yet to say, what is the situation of the survey for 530 acres of land made for O'Neal, and placed on the record-book of the surveyor. To make this obligatory on the party, it was necessary that all the acts done should have been performed or approved by O'Neal himself, or some one of his assignees, or by some agent authorized for that purpose. There is no evidence in the cause to this effect: the placing the survey on the surveyor's book is, therefore, an unauthorized and void act.

"In the case of *Wilson* v. *Mason*, in the late district court, the court decided, that a survey once recorded was not afterwards in the power or control of the party. This opinion was predicated on two facts found in that cause, that William Mason was the agent of the defendant, and approved of what had been done, by registering the surveys of Mason, although cautioned of his danger.

"Upon this view of the case, the court is of opinion, that the complainant recover of the defendant 1000 acres of land, to be laid off agreeable to the mode pointed out as the proper manner for surveying O'Neal's entry. That upon the defendant Massie's conveying the said 1000 acres of land to the complainant, he, the complainant, shall assign to the said defendant all his right in and to 1000 acres of the warrant issued to the said O'Neal. *So far as this suit relates to the defendant Anderson, it is decreed and ordered, that the bill be dismissed as to him, with costs, the court being of opinion, he was improperly made a party. It is, therefore, considered by the court, that the defendant Anderson recover of the complainant his costs by him in this behalf expended." [*155

And afterwards, at the same term, the following order was made herein. "The court in pursuance of the opinion and decree delivered in this cause on the eighth day of this month (December), doth order, that the surveyor of Ross county do go on the land in controversy, and lay off the same as follows: Thomas Massie's entry, by beginning at the mouth of Paint creek, thence up the Scioto, so far as will amount to 520 poles, when reduced to a straight line, and from each end of this base, at right angles from the general course, so far that a line parallel with that general course will produce the quantity of 1400 acres. Robert Powell's entry, by beginning at the upper corner of Thomas Massie's entry, that is, 520 poles from the mouth of Paint creek, thence up the river, so far as will amount to 520 poles, when reduced to a straight line, and from the end of this base line, a line is to be run at right angles to the general course of that portion of the river which is occupied by the base line, and from the beginning with the lines of Thomas Massie, that is, his second and third lines, so far that a line parallel to the general course of this base line, will produce the quantity of 1000 acres. Ferdinand O'Neal's entry, by beginning at the upper corner of Robert Powell's entry, when laid off as aforesaid, thence up the Scotio, so far as will amount to 520 poles, when reduced to a straight line, and from the end of this base line, a line is to be run, at right angles from the general course of that portion of the river which is occupied by the base line, and from the beginning with the second and third lines of Powell, so far that a